



Tribunals Ontario

Landlord and Tenant Board

Form N6

Notice to End your Tenancy For Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit

Instructions

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January 1, 2018

SECTION**A****When to use this notice**

You can give this notice to the tenant for the following reasons:

- **Reason 1:** The tenant or another occupant of the rental unit has committed an illegal act or is carrying on an illegal business at the residential complex involving:
 - the production of an illegal drug,
 - trafficking in an illegal drug, or
 - possession of an illegal drug for the purposes of trafficking, or the tenant has permitted someone else to do so.
- **Reason 2:** The tenant or another occupant of the rental unit has committed an illegal act or is carrying on an illegal business, other than described above, at the residential complex, or the tenant has permitted someone else to do so.
- **Reason 3:** The tenant lives in rent-geared-to-income housing and has misrepresented their income or that of family members who live in the rental unit.
 - If you do not want to evict the tenant but want to collect the additional rent the tenant owes you, see [Form L9 Application to Collect the Rent the Tenant Owes.](#)
 - If you want to evict the tenant if they do not pay the additional rent the tenant owes, you can serve the tenant with [Form N4 Notice to End your Tenancy Early for Non-payment of Rent.](#)

Giving this notice is the first step in evicting a tenant for the above reasons. See [Section D](#) below for information about what happens after you give this notice to your tenant.

SECTION**B****How to complete this notice**

Read these instructions before completing the notice. You are responsible for ensuring that your notice is correct and complete. Follow the instructions carefully when you complete the notice. If you do not complete the form properly, your notice may not be valid and you may have to start over.

Under **To**, fill in the name of the tenant to whom you want to give the notice. If there is more than one tenant living in the rental unit, fill in the names of all of the tenants. Where there is a subtenant or assignee, you should name these people in the notice. However, you do not need to name other occupants, such as children or guests of the tenant.

Under **From**, fill in your name. If there is more than one landlord, fill in the names of all of the landlords.

Under **Address of the Rental Unit**, fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

The Termination Date

The earliest date you can fill in for this field depends on which reason(s) you are selecting. If you select both Reason 1 and Reason 2 or Reason 3, you must fill in the termination date based on the rules for Reason 2 and Reason 3.

For **Reason 1**, the termination date must be at least **10 days** after you give the tenant this notice.

For **Reasons 2 and 3**:

- If this is the tenant's first **Notice to End your Tenancy** in the past 6 months, the termination date must be at least **20 days** after you give the tenant this notice.
- If this is the tenant's second *Notice to End your Tenancy* in the past 6 months and the first notice had a 7 day correction period, the termination date must be at least **14 days** after you give the tenant this notice.

When you are counting the days, do not include the date you are giving the notice to the tenant. If you are **faxing** the notice, the notice is deemed to be given on the date imprinted on the fax. If you are sending the notice **by courier**, add one business day for delivery. If you are sending the notice **by mail**, add five days for delivery.

Example:

This is the second form N6 notice the landlord will have served in the past 6 months. If Jose, the landlord, decides to hand the form N6 notice to Bertha, the tenant, in person on November 22nd, the landlord can fill in December 6th as the termination date (14 days after November 22nd). If the landlord intends to put the notice in the mail on November 22nd, the landlord has to add five calendar days, bringing the termination date to December 11th (14 days + 5 days for mailing).

My Reason(s) for Ending your Tenancy:

Shade the box completely next to each reason for giving the tenant this notice.

Details About the Reasons for this Notice:

If you have checked Reason 1 or Reason 2, in the space provided on the form describe what you believe the tenant or another occupant of the rental unit did, or, what the tenant permitted someone else to do at the residential complex that has caused you to give the notice. You should be as specific as possible. Include whether it was the tenant, another occupant of the rental unit or a guest of the tenant who caused the problem. Include the dates and times the event(s) occurred, what happened, who was affected, etc.

If you have checked Reason 3, include the amount by which the tenant misrepresented their income or that of family members and show how you calculated the amount. If you need additional space, complete and attach an additional sheet of paper.

Signature:

If you are the landlord, shade the circle marked “Landlord”. If you are the landlord’s representative, shade the circle marked “Representative”. Fill in your name and phone number. Then, sign the notice and fill in the date you sign the notice.

Representative’s Information (if applicable):

If you are the landlord’s representative, fill in your name and phone number. Then, fill in your name, company name (if applicable), and mailing address. Include your phone number and fax number, if you have one.

SECTION

C

How to give this notice to your tenant

There are many ways that you can give this notice to your tenant. You can:

- hand it directly to the tenant or to an adult in the rental unit,
- leave it in the tenant's mailbox or where mail is ordinarily delivered,
- place it under the door of the rental unit or through a mail slot in the door,
- send it by fax to a fax machine where the tenant carries on business or to a fax machine in their home,
- send it by courier, or
- send it by mail.

You cannot give the tenant this notice by posting it on the door of the tenant’s rental unit.

SECTION

D

What happens after you give this notice

It is important that you keep a copy of the notice you give the tenant.

You can apply to the LTB for an order to terminate the tenancy immediately after giving the notice to the tenant.

To make this application, you need an [Application to End a Tenancy and Evict a Tenant \(Form L2\)](#). You will also need to file a copy of the [Notice to End your Tenancy For Illegal Acts or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit](#) (Form N6) you gave the tenant, and a [Certificate of Service](#) to tell the LTB when and how you gave the notice to the tenant.

You must apply no later than 30 days after the termination date you put in this notice.

The L2 application and the Certificate of Service forms are available at your local LTB office, or from the LTB website at tribunalsontario.ca/ltb.

**SECTION
E**

What to do if you have any questions

You can visit the LTB website at: tribunalsontario.ca/ltb

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll-free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.